REPORTABLE (27)

BLESSING MHLANDLA
v
THE STATE

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHITAKUNYE JA & MWAYERA JA
BULAWAYO: 17 NOVEMBER 2025 & 19 NOVEMBER 2025

T. Runganga, for the appellant

K. Shava, for the respondent

MWAYERA JA: This is an appeal against the whole judgment of the High Court of Zimbabwe ("the court *a quo*"), sitting at Bulawayo, handed down on 25 June 2025, under case number HCBCR 2560/25. The court *a quo* found the appellant guilty of murder as defined in s 47 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Code"), and imposed a sentence of twenty years' imprisonment. On 19 November2025, this Court dismissed the appeal and indicated that written reasons would be availed in due course. These are the reasons.

THE FACTS

The appellant was arraigned before the court *a quo* on a charge of murder as defined in s 47 of the Code. The background facts are largely common cause and may be succinctly stated as follows.

On 18 June 2024, at approximately 22:00 hours, the appellant was playing a game of snooker at Giyane Sports Bar in Cowdray Park, Bulawayo, where the deceased was employed as a security guard. A dispute arose after the appellant removed a white snooker cue ball from the table and walked outside. The deceased followed him in an effort to retrieve the

ball, and a quarrel ensued, during which the appellant bit the deceased on the left arm. The deceased thereafter returned to the bar, retrieved a sjambok, and again confronted the appellant. A further altercation unfolded outside the sports bar, during which the deceased was subjected to a severe assault. He collapsed and lost consciousness. Emmanuel Nqobile Govha, Mike Julius, and Admire Moyo rendered assistance and eventually took him to his residence.

On the following day, 19 June 2024, the deceased began vomiting. A report was made at the Zimbabwe Republic Police, Cowdray Park, prompting investigations that led to the arrest of the appellant on 20 June 2024. The deceased was referred to Mpilo Hospital for further management, but his condition deteriorated and he succumbed to his injuries on 23 June 2024.

At the commencement of the trial in the court *a quo*, the post-mortem report and the appellant's warned and cautioned statement were admitted into evidence by consent. The post-mortem report disclosed that the cause of death was "severe brain injury and haemorrhage, skull fractures." In his warned and cautioned statement, the appellant stated that:

> "I did not kill anyone. l had a misunderstanding with him/her in the bar, and he struck me with a sjambok and also throttled me and l bit him on the arm and ran away. The person l heard talking about assaulting someone is a young man called Tirivamwe"

Police investigations subsequently led to the recovery of the sjambok from the appellant's bedroom. In his warned and cautioned statement, the appellant acknowledged that a misunderstanding had arisen between himself and the deceased but denied any responsibility for the latter's death, attributing the fatal assault to an individual he identified as "Tirivamwe."

In his defence, the appellant averred that there was nothing linking him to the commission of the offence. While he admitted that an altercation had ensued between him and the deceased, he maintained that his involvement extended no further than biting the

deceased on the left arm in an effort to free himself after the deceased had allegedly grabbed and assaulted him. He claimed that once released, he fled to his place of residence, leaving the deceased behind.

The State adduced evidence from witnesses whose evidence was admitted by consent in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9.07*]. (CPEA). Other witnesses gave oral evidence. Emmanuel Govha testified that an altercation occurred between the appellant and the deceased. He stated that the appellant took a snooker ball, and the deceased attempted to retrieve it, as it was not the appellant's turn to play. The appellant refused to return the ball. The deceased, with the assistance of Admire Moyo, tried to retrieve the ball from the appellant. They then moved the appellant outside, where the appellant allegedly struck the deceased.

The witness further testified that he observed the deceased lying on the ground, facing upwards, while the appellant held a weapon, which the witness could not identify and struck the deceased on the head. He then poured water on the deceased to wash off the blood and subsequently took him to his residence. The second witness, Admire Moyo's testimony closely followed that of Emmanuel Govha.

Mike Julius also testified, largely corroborating the sequence of events narrated by the preceding witnesses. He recounted that he followed the altercation outside the bar and observed the appellant and the deceased engaged in a physical struggle. He attempted to intervene but was unable to separate them and temporarily withdrew. Upon looking back after a short interval, he saw other patrons fleeing from the scene. Returning to ascertain what had transpired, he found the deceased lying unconscious and bleeding from the head. Together with Emmanuel Govha, they endeavoured to administer first aid and subsequently transported the deceased to his place of residence.

It was further established through the evidence of Nkosilathi Phiri, the investigating officer that when the appellant was initially arrested for attempted murder on the 18th of June 2024, he never mentioned in his warned and cautioned statement, the defence later raised that it was Tirivamwe who had assaulted the deceased. Tirivamwe was only brought into the picture when the accused learnt of the deceased's demise and when he realised he was now being charged with murder.

Further, the respondent, in its closing submissions, contended that the only reasonable inference from the evidence is that the appellant alone caused the death of the deceased. This was predicated on the fact that it was the appellant who had engaged in the altercation with the deceased, and that the deceased pursued him after he fled from Giyane Sports Bar, establishing that the appellant was the only person with motive to inflict harm. Moreover, the sjambok, which had been in the possession of the deceased during the second altercation, was subsequently recovered from the appellant's residence. It was also highlighted that, after its admission in terms of s 314 of the CPEA, the evidence of Thobekile Mabhena revealed that the deceased himself identified the appellant as the person who had assaulted him. Taken together, these facts established a clear and cogent link between the appellant and the fatal assault.

THE FINDINGS OF THE COURT *A QUO*

The court *a quo* found, on the totality of the evidence, that it was beyond dispute that the deceased had encountered the appellant on two separate occasions that night; first, before he had armed himself with a sjambok, and subsequently, when he returned holding the sjambok. The court further found that the appellant himself acknowledged the presence of the sjambok, stating that he had seen the deceased brandishing it. Crucially, the court held that it

was during this second encounter, when the deceased was armed with the sjambok that he was struck, fell to the ground, and suffered the fatal injuries.

The court reasoned that the appellant's version was inherently inconsistent. On his own account, he claimed to have fled the scene before the deceased re-emerged with the sjambok. Yet, paradoxically, he also professed knowledge of the deceased holding that weapon and described events that, on his version, he could not have witnessed. The court *a quo* concluded that the appellant could not have seen the deceased with the sjambok, nor could he have described the ensuing events, if indeed he had fled prior to the deceased arming himself. This inconsistency formed a pivotal part of the court's rejection of the appellant's exculpatory narrative.

The court *a quo* further observed that when the deceased was taken to the hospital, the appellant was simultaneously taken in by the police in connection with the assault. At that stage, the court found, there was no mention whatsoever of the now-alleged assailant, one Tirivamwe. The court remarked that, had the assault indeed been perpetrated by this third party, nothing prevented the appellant from stating so at the earliest opportunity. His silence in that regard was, in the court's view, telling.

The court *a quo* was satisfied that the appellant was the person who assaulted the deceased and inflicted the injuries from which he ultimately died. The court, applied properly in our view, the applicable principles governing circumstantial evidence. It found it significant that the same sjambok which the deceased had brandished was later recovered in the appellant's bedroom. Having been present when the deceased came armed with the sjambok, the appellant ought reasonably to have explained how that weapon came to be found at his residence. If he was not the person who brought it there, he could, and should have said so well before the matter escalated into a charge of murder. His failure to offer such an

explanation, coupled with his belated attribution of blame to a third party, led the court to conclude that his denials were no more than bare assertions devoid of probative value. On the strength of this chain of circumstantial evidence, each link consistent with his guilt and inconsistent with any reasonable hypothesis of innocence, the court *a quo* concluded that the appellant was the author of the fatal assault. It accordingly found him guilty of murder with actual intent and sentenced him to 20 years' imprisonment.

Aggrieved by the decision of the court *a quo*, the appellant has approached this Court for relief on the following grounds of appeal:

GROUNDS OF APPEAL

Against Conviction

1. The court *a quo* erred and grossly misdirected itself when it convicted the accused based on circumstantial evidence; the evidence was not consistent with the guilt of the accused person.
2. The court *a quo* erred and grossly misdirected itself in convicting the accused when there was no evidence that he caused the death of the deceased, or that he acted in common purpose.
3. A fortiori, the court misdirected itself when it completely ignored that the accused, from the onset as contained in his warned and cautioned statement, stated that the deceased was assaulted and killed by Tirivamwe Shirichena.
4. The court *a quo* erred and grossly misdirected itself when it convicted based on a sjambok which was never proven to have been brought to the House by the accused, and the same was not tendered in court as an exhibit.

5. The court *a quo* erred and grossly misdirected itself when it convicted the accused in the face of overwhelming contradictions by the state witnesses which affected their credibility and manifestly unreliable evidence.
6. Further, the court *a quo* erred and grossly misdirected itself when it held that the State proved its case beyond a reasonable doubt when it was clear that there was so much doubt, that someone else who is on the run is said to have assaulted the deceased on the night in question.
7. The court *a quo* erred and grossly misdirected itself when it convicted the accused on the charge of murder when it was clear that whoever assaulted the deceased had no intention to kill; culpable homicide would have done justice.

Against Sentence

8. The court *a quo* grossly erred in making findings that the offense was committed in aggravating circumstances, thereby sentencing the accused to 20 years imprisonment, which induces a sense of shock
9. The court *a quo* erred by paying lip service to the Appellant's mitigatory circumstances, which overweighed his aggravating circumstances

RELIEF SOUGHT

"1. The appeal be allowed.

2. The whole judgment of the court *a quo* be set aside and in its place be substituted with the following:
   "The accused be found not guilty and be hereby acquitted."

3. The appellant's conviction and sentence are quashed and set aside."

ALTERNATIVELY

"In the event that the court finds that the conviction on murder is unassailable, it is the accused's prayer to this Honourable Court that he be convicted on culpable homicide and the sentence on murder be set aside and be substituted with a less retributive sentence, 400 hours community service at Tredgold Building, Bulawayo"

SUBMISSIONS BEFORE THIS COURT

Appellant's submissions

At the hearing of the appeal, Mr *Runganga*, for the appellant, submitted that he abided by the grounds of appeal and the written heads of argument. The gravamen of his submission was that the court *a quo* misdirected itself by relying on circumstantial evidence which, in his view, fell short of the threshold required for a conviction of murder.

Counsel further argued that the issue surrounding the sjambok was improperly relied upon, suggesting that the weapon had been brought by a friend whom the appellant had been with earlier in the evening. Upon inquiry from the Court, counsel conceded that the sjambok was recovered by the police in the appellant's bedroom. The Court queried the relevance of counsel's argument regarding the presence of "friends", noting that no evidence existed to support the claim that the sjambok had been brought to the appellant's residence by anyone other than the appellant himself. The Court further observed that the assertion that "Tirivamwe." brought the sjambok surfaced only after the deceased's death, yet the appellant had not raised this explanation when initially charged with attempted murder. The Court drew counsel's attention to the appellant's warned and cautioned statement, wherein he effectively acknowledged that the deceased possessed a sjambok during the fight, and that this was the same sjambok later recovered from his room.

Faced with these inquiries, counsel conceded that the sjambok was indeed recovered from the appellant's residence, but attempted to recast his argument to suggest that the weapon was not the cause of the injuries that led to the deceased's demise. He submitted that in view of the circumstances the sentence of 15years was unwarranted.

Respondent's submissions

Per contra, Mr *Shava*, for the respondent submitted that the evidence clearly demonstrated that the fatal confrontation was between the deceased and the appellant. This,

he argued, constituted evidence placing the appellant at the scene at the material time when the deceased sustained the injuries that caused his death.

Counsel submitted that even if the Court were to accept the appellant's belated allegation that another individual ("Shirichena") inflicted blows on the deceased, such a finding would not exonerate the appellant in light of the doctrine of common purpose. He emphasized that the appellant did not implicate any third party when the charge was initially one of attempted murder. It was only after the deceased passed away that he introduced this version, which counsel characterised as an afterthought.

On the issue of culpable homicide, counsel argued that the appellant could not seek a conviction for a lesser offence while simultaneously denying responsibility for the fatal injuries. He submitted that such an inconsistent position was untenable.

Regarding sentence, counsel submitted that although the conviction for murder was proper, the State was of the view that a custodial term of 15 years would have been appropriate, as this accords with the presumptive sentence under the sentencing guidelines in the absence of aggravating circumstances.

ISSUES FOR DETERMINATION

Having considered the grounds of appeal, the heads of argument filed of record, and the oral submissions made by counsel at the hearing, the determination of this appeal hinges upon the resolution of two central questions:

1. Whether or not the court *a quo* erred in convicting the appellant of murder based on circumstantial evidence
2. Whether or not the court *a quo* erred in sentencing the appellant to 20 years' imprisonment

THE APPLICABLE LAW AND ANALYSIS

1. Whether or not the court *a quo* erred in convicting the appellant of murder based on circumstantial and inconsistent evidence.

Although the appellant raised seven grounds of appeal against conviction, the appeal ultimately turns on the dispositive question whether, on the totality of the evidence placed before it, the court *a quo* correctly found that the appellant committed murder as defined under s 47 of the Code.

It is trite that in criminal proceedings, the burden of proof rests squarely upon the State to establish the guilt of the accused beyond reasonable doubt. What this effectively entails was authoritatively stated by DUMBUTSHENA CJ (as he then was) in *S* v *Isolano* 1985 (1) ZLR 62 (S) at pp 64G -65A, thus:

> "In my view the degree of proof required in a criminal case has been fulfilled. In *Miller* v *Minister of Pensions* [1947] 2 All ER 372 (KB), LORD DENNING described that degree of proof at 373H as follows:
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> > '…and for that purpose the evidence must reach the same degree of cogency as is required in a criminal case before an accused person is found guilty. That degree is well settled. It need not reach certainty, but it must carry a high degree of probability. Proof beyond reasonable doubt does not mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence 'of course it is possible, but not in the least probable, the case is proved beyond reasonable doubt, but nothing short of that will suffice…'" (My emphasis)

Applying the foregoing authority to the present matter, the critical inquiry is whether the evidence adduced by the State was so compelling as to leave only a remote possibility in favour of the appellant. Counsel for the appellant contended that the court *a quo* misdirected itself in relying on circumstantial evidence, which, in his view, did not meet the threshold for a criminal conviction. He further submitted that the evidence of the State witnesses contained material inconsistencies and that the sjambok, allegedly recovered from

the appellant's residence, was never produced in court, yet the conviction was, according to him, predicated on this weapon.

The law on circumstantial evidence was authoritatively summarized in *S* v *Simango* SC 42/14 at p 4, where the court held that:

> "The law on circumstantial evidence was correctly summed up by WATERMEYER JA in the much-celebrated case of *R* v *Blom* 1939 AD 188 at 202 and 203 when the learned judge referred to "two cardinal rules of logic" which govern the use of circumstantial evidence in a criminal trial:
>
> '(1) the inference sought to be drawn must be consistent with all the proven facts ….
>
> (2) the proved facts should be such that they exclude every possible inference from them save the one to be drawn ….'"

A reading of the judgment of the court *a quo* demonstrates that it carefully applied these principles. The court found that the appellant was indeed present and actively participated in altercations with the deceased on two occasions: the first when the deceased was unarmed, and the second when the deceased returned with a sjambok. The court found the appellant's attempt to distance himself from the second incident unsustainable, given his own contradictions and inconsistent explanations.

Notably, the appellant, in his warned and cautioned statement, admitted to have seen the deceased with the sjambok, yet claimed he fled before the deceased returned with it. This assertion, as the court *a quo* correctly found, is inherently inconsistent. If he had fled, he could not have witnessed the deceased wielding the sjambok. Moreover, it should be pointed out that the State's failure to produce the sjambok in court is of no consequence and cannot shield the appellant, since the existence of the sjambok and that it was found in appellant's room. Was common cause between the parties, and was consistently adverted to in both the State and defence papers.

The cumulative weight of the evidence, therefore, satisfies the requisite threshold for the proper admission of circumstantial evidence. On the totality of the proved facts, the only reasonable inference is that the appellant was involved in the altercation with the deceased and that this confrontation directly resulted in the fatal injuries sustained by the latter.

This conclusion is reinforced by the testimony of Mike Julius, who unequivocally stated that he saw the appellant engaged in a physical fight with the deceased. He further observed that, shortly thereafter, the deceased was bleeding from the head, an observation that accords with the injuries recorded in the post-mortem report. Interestingly, counsel for the appellant, in submissions before this Court, accepted the credibility of Mike Julius's evidence and as a result, it would be difficult for the appellant to seek to distance himself from the altercation that caused the deceased's death.

The post-mortem report confirmed severe head and brain trauma, consistent with his evidence and also that of Emmanuel Govha. It was his testimony that he observed the appellant strike the deceased on the head with an object he could not identify. Having established that the appellant cannot dissociate himself from this altercation, it follows inexorably that his actions caused the injuries from which the deceased ultimately died.

Further, the targeting of the head, as evidenced by the fractured skull in the post mortem report, a particularly vulnerable part of the body, reveals the intention to cause fatal harm, as contemplated under s 47 of the Criminal Code. The facts, viewed cumulatively and in their proper context, fully support the conclusion reached by the court *a quo*. As articulated in *R* v *Sibanda & Ors* 1965 (4) SA 241 (RA) at 246:

> "Generally speaking, when a large number of facts taken together point to the guilt of an accused, it is not necessary that each should be taken in isolation and proved beyond a reasonable doubt. It is sufficient if all the facts, taken together, prove the guilt of the accused beyond reasonable doubt." (My emphasis)

In the present case, it is evident that the circumstances, when viewed cumulatively rather than in isolation, exclude any reasonable possibility that it was not the appellant who engaged in the altercation with the deceased, an altercation which directly precipitated the deceased's demise. The evidence clearly places him as an active participant in the assault, and his liability stands notwithstanding the alleged involvement of others. The court *a quo* was therefore correct in concluding that the totality of the evidence established the appellant's guilt beyond reasonable doubt.

Having made the foregoing findings, it is pertinent to reiterate the scope of this Court's appellate jurisdiction. In this regard, reference is made to the pronouncement of this Court in *Zinwa* v *Mwoyounotsva* 2015 (1) ZLR 935 (S) at para 16, to the effect that:

> "It is settled that an appellate court will not interfere with factual findings made by a lower court unless those findings were grossly unreasonable in the sense that no reasonable tribunal applying its mind to the same facts would have arrived at the same conclusion; or that the court had taken leave of its senses; or, put otherwise, the decision is so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at it, or that the decision was clearly wrong."

Upon a careful examination of the record, this Court discerns no misdirection *in casu* and no basis to interfere with the findings of the court *a quo* regarding the conviction. The conclusions of the trial court were firmly anchored on the evidence placed before it. In light of the evidence that was before the court *a quo*, its findings remain unassailable.

2. Whether or not the court *a quo* erred in sentencing the appellant to 20 years imprisonment.

Regarding the sentence, the appellant contended that the court *a quo* misdirected itself in imposing a sentence of twenty years' imprisonment in the absence of aggravating factors. It was further contended that the court *a quo* paid mere lip service to his mitigatory circumstances which, in his view, outweighed the aggravating features.

In *S* v *Munakamwe* SC121/23 at p 7, this Court observed with clarity the guiding principles governing sentencing. It remarked, thus:

> "The starting point is to make the general observation that the objective of sentencing is to correct, rehabilitate and punish convicted offenders in a just and proportionate manner. While reformation and rehabilitation of offenders is a relevant consideration, retribution is still part of the sentencing policy of this jurisdiction. In other words, the sentencing court must always bear in mind that sentencing is also aimed at ensuring that the offender faces a sentence that is in equal measure to the harm he or she has caused. Anything short of that will bring the criminal justice system into disrepute.
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> Having said that, it must also be stated that the position is settled in our law that sentencing is, first and foremost, pre-eminently the discretion of the trial court. The purpose of discretion is certainly to allow the sentence to select the sentence which he or she believes to be most appropriate in the individual case, having regard to the facts and the circumstances of the offender.
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> As to when an appeal court can interfere with the discretion of a trial court, it is also settled that interference can only be done where the sentence is disturbingly inappropriate or where the discretion has been exercised capriciously or upon a wrong principle." (Underlining for emphasis)

Equally relevant are the observations of MALABA DCJ (as he then was) in *S* v *Muhomba* SC 57/13 at p 9, where he emphasised:

> "On the question of sentencing, it has been said time and again, that sentencing is a matter for the exercise of discretion by the trial court. The appellate court would not interfere with the exercise of that discretion merely on the ground that it would have imposed a different sentence had it been sitting as a trial court. There has to be evidence of a serious misdirection in the assessment of sentence by the trial court for the appellate court to interfere with the sentence and assess it afresh. The allegation in this case is that the sentence imposed is unduly harsh and induces a sense of shock. In *S* v *Mkombo* HB 140/10 at p 3 of the cyclostyled judgment it was held that:
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> > 'The position of our law is that in sentencing a convicted person, the sentencing court has a discretion in assessing an appropriate sentence. That discretion must be exercised judiciously having regard to both the factors in mitigation and aggravation. For an appellate tribunal to interfere with the trial court's sentencing discretion there should be a misdirection. See *S* v *Chiweshe* 1996 (1) ZLR 425 (H) at 429D; *S* v *Ramushu & Ors* S-25-93.
> >
> > It is not enough for the appellant to argue that the sentence imposed is too severe because that alone is not misdirection and the appellate court would not interfere with a sentence merely because it would have come up with a different sentence. In *S* v *Nhumwa* SC 40/88 (unreported) at p 5 of the cyclostyled judgment it was stated: It is not for the court of appeal to interfere with the discretion of the sentencing court merely on the ground that it might have passed a sentence somewhat different from that imposed. If the sentence complies with the relevant principles, even if it is severe than one that the court would have

> imposed sitting as a court of first instance, this Court will not interfere with the discretion of the sentencing court.'"

The thread running through the above authorities is that the threshold for appellate interference in sentencing is narrow and stringent. Sentencing is, by long-standing principle, a matter pre-eminently within the discretion of the trial court. An appellate court will not lightly intrude upon that domain unless it is shown that the court *a quo* committed a gross misdirection, overlooked relevant considerations, such as mitigatory and aggravating factors, or imposed a sentence so startlingly inappropriate or that induces shock such that no reasonable court, properly applying its mind, could have arrived at it.

The introduction of the Criminal Procedure (Sentencing Guidelines) Regulations, 2023 provides structure to the sentencing process. While the guidelines render direction in the exercise of this discretion, they do not dilute the basic principle that the trial court's sentencing discretion is to be respected unless shown to have been exercised injudiciously, or in clear disregard of established principles. The question, therefore, is whether, on the facts of this matter, any such misdirection is established. This Court finds none in the present matter.

Contrary to the stance advanced in its heads of argument, wherein the respondent contended for the unassailability of the sentence imposed, in oral submissions, counsel for the appellant submitted that he did not discern any aggravating factor warranting the 20-year sentence. Counsel further suggested that the deceased had been the aggressor. This Court is unable to agree with this submission. The evidence on record demonstrates that the deceased was employed as a security guard at the bar where the altercation occurred. The initial dispute arose when the appellant, without justification, removed a white snooker cue ball from the club, prompting the deceased, in the proper exercise of his duties, to attempt to retrieve it. The altercation, therefore, was precipitated by the appellant's unprovoked conduct. While

it is true that the deceased subsequently retrieved a sjambok and confronted the appellant, this was a direct response to the appellant's earlier aggression; the brawl was initiated by the appellant.

Similarly, we are unable to agree with the appellant's contention that the court *a quo* imposed the 20 year sentence in the absence of aggravating factors. The court observed that:

> "The offences of murder in this part of the country are worrisome. The people are prone to violence which they execute with disastrous consequences. In this case the accused took the ball away and ended up biting the deceased. The deceased sought to deal with the accused for the bite. And we end up having this murder. As a result of the offence we now have an infant who shall not see her father as she is deceased's child. His wife has lost a life companion. Had accused not taken the snooker ball, his engagement with the deceased would have been avoided."

The tone of the court *a quo* in its sentencing judgment was deliberate and unmistakable. While it acknowledged the mitigatory factors, including the appellant's youth and the prospect of rehabilitation, it gravitated towards retribution and deterrence in light of the prevailing culture of violence in the area. Deterrence justifies punishment by its ability to prevent future crime in society. The court also emphasised the profound personal consequences of the offence: the deceased was a family man whose infant was deprived of a father, and whose wife was bereft of a life companion, highlighting the enduring social and moral gravity of the crime.

In light of all these considerations it cannot be said that the court *a quo* failed to judiciously exercise its sentencing discretion. It is well-established that sentencing is a delicate balancing exercise, of discretion by the trial court. Where the discretion has been judiciously exercised there is no legitimate basis for the appellate court to interfere merely to assert its authority. In this case the trial court considered both mitigating and aggravating factors. The law expressly recognises that the proper identification of an aggravating factors permits the

sentencing court to impose a sentence that is more than the presumptive sentence. As correctly noted by counsel for the appellant, where aggravating circumstances are established, the statutory minimum sentence for murder is twenty years' imprisonment, which is precisely the sentence imposed. Accordingly, there is no misdirection in the imposition of the twenty-year sentence.

DISPOSITION

From the foregoing, the court *a quo* properly evaluated the evidence before it, applied the correct legal principles governing circumstantial evidence, and arrived at a well-reasoned finding of guilt. The appellant's conviction was supported by a coherent chain of evidence that excluded any reasonable doubt as to his culpability. Furthermore, in sentencing, the court *a quo* exercised its discretion judiciously within the confines of Statutory Instrument 146 of 2023 and the established principles of proportionality and justice. There is no indication of any misdirection or irregularity warranting interference by this Court. The present appeal lacks merit and it ought to be dismissed.

It is for these reasons that this Court dismissed the appeal in its entirety.

MAVANGIRA JA : I agree

CHITAKUNYE JA : I agree

Tanaka Law Chambers, appellant's legal practitioners.
National Prosecuting Authority, respondent's legal practitioners.